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Case No. 991/4579/26
Proceeding 1-ks/991/4592/26

HIGH ANTI-CORRUPTION COURT

RULING

08 May 2026 **Kyiv**

Investigating Judge of the High Anti-Corruption Court O.V. Fedorov,

with the participation of:

court session secretary Homeniuk A.S.,

representative of the applicant - advocate Miftakhutdinov V.S.,

SBU investigator Romashkin D.S.,

prosecutor Safaryan O.E.,

having examined in open court session the motion of advocate Miftakhutdinov V.S., submitted in the interest of Bohuslaiev O.V., to cancel property seizure in criminal proceeding No. 22017000000000272 dated 06.07.2017,

ESTABLISHED:

1. Brief content of the demands of the motion

The High Anti-Corruption Court received a motion from advocate Miftakhutdinov V.S., submitted in the interest of Bohuslaiev O.V., in which he requests:

1. To cancel the seizure imposed by the ruling of the investigating judge of the Shevchenkivskyi District Court of Kyiv dated 13.05.2025 in case No. 761/19003/25, proceeding No. 1-ks/761/19003/25, within criminal proceeding No. 22017000000000272 dated 06.07.2017 on property owned by right of private ownership by Bohuslaiev Oleksandr Viacheslavovych (RNTRC 2871100518), namely on:

- a share in the charter capital of LLC "FIRM 'ZHEKON'" (EDRPOU code 13617303) in the amount of 51 %, which in monetary equivalent constitutes UAH 13,260,000.00;
- an apartment with a total area of 42.24 sq.m., living area of 27.2 sq.m., located at the address: Zaporizhzhia, Lenina Avenue, bldg. 129, apt. 37 (property registration number: 18402097);
- a garage with a total area of 38.2 sq.m., located at the address: Zaporizhzhia, servicing cooperative "Dniprohes", garage No. 49 (property registration number: 27062653);
- an apartment with a total area of 88.9 sq.m., located at the address: Autonomous Republic of Crimea, Yalta, Karla Marksa Street, bldg. 18a, apt. 29 (immovable property registration number: 200428101119);

2. To cancel the measure of securing criminal proceedings specified by the ruling of the investigating judge of the Shevchenkivskyi District Court of Kyiv dated 13.05.2025 in case No. 761/19003/25, proceeding No. 1-ks/761/19003/25, regarding the transfer of the specified property to the National Agency of Ukraine for Finding, Tracing and Management of Assets Derived from Corruption and Other Crimes (ARMA) for taking measures to manage them.

In substantiation of the motion, the advocate noted the following:

1) the specified property is not and cannot be physical evidence, as it was acquired long before the alleged commission of the crime incriminated against him, in connection with which it does not meet the criteria of physical evidence defined by Article 98 of the CPC of Ukraine;

Вищий антикорупційний суд
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2) any decision of the prosecution on recognizing the property as physical evidence is absent;

3) the property could not be transferred to ARMA pursuant to part 6 of Article 100 of the CPC of Ukraine, as it (1) is not physical evidence, (2) it has not been established that the value of the property exceeds 200 sizes of the subsistence minimum for able-bodied persons, (3) the prosecution did not apply to the court with an appropriate motion to determine the procedure for storing physical evidence;

4) the seizure of property was imposed without grounds, since Bohuslaiev O.V. is not a suspect or accused in criminal proceedings, a civil defendant or a person to whom criminal law measures may be applied;

5) the seizure of property violates the principle of proportionality and constitutes an excessive burden for the property owner;

6) during the resolution of the issue of seizing the property, the consequences of its application and transfer to ARMA were not taken into account;

7) the seizure is unjustified and excessively burdensome, which violates the requirements of Article 1 of the First Protocol to the Convention for the Protection of Human Rights and Fundamental Freedoms.

In view of the above, the advocate is convinced that the seizure imposed within criminal proceeding No. 22017000000000272 dated 06.07.2017 on the property of Bohuslaiev O.V. is subject to cancellation.

2. Position of the court session participants

Advocate Miftakhutdinov V.S. supported the demands of his motion and requested to grant it.

Prosecutor Safaryan O.E. objected to granting the motion, arguing that the seizure on the property of Bohuslaiev O.V. was imposed lawfully and reasonably, there are no grounds for its cancellation. In addition, he noted that defense counsel of Bohuslaiev O.V. - advocate Boiko S.H. had already appealed the ruling of the investigating judge of the Shevchenkivskyi District Court of Kyiv dated 13.05.2025 in case No. 761/19003/25 in appellate procedure, following which, by ruling of the Kyiv Court of Appeal dated 30.03.2026, granting the defense counsel's appeal was refused.

SBU Investigator Romashkin D.S. also objected to granting the advocate's motion, considering it unfounded, while the seizure, in his conviction, was imposed reasonably.

3. Established circumstances and motives of the court

Paragraph 2 of part one of Article 174 of the CPC of Ukraine provides that the seizure of property may also be cancelled entirely or partially by a ruling of the investigating judge during pre-trial investigation or of the court during court proceedings upon motion of the suspect, accused, their defense counsel or legal representative, another owner or holder of the property, representative of a legal entity regarding which proceedings are conducted, if they prove that in further application of this measure the need has lapsed or the seizure was imposed unreasonably.

From the said norm it appears that adoption of a decision on cancelling property seizure upon motion of the abovementioned persons is possible only under the following conditions: they prove that in further application of this measure the need has lapsed, or they prove that the seizure was imposed unreasonably.

In the motion, the advocate indicates that the seizure was imposed unreasonably, and therefore, in view of the principle of dispositivity, the investigating judge must establish the presence or absence only of the ground indicated by the advocate for cancelling the seizure.

Вищий антикорупційний суд
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Thus, from the content of the motion and materials attached thereto, it was established that within criminal proceeding No. 22017000000000272 dated 06.07.2017, by ruling of the investigating judge of the Shevchenkivskyi District Court of Kyiv dated 13.05.2025 (case No. 761/19003/25, proceeding No. 1-ks/761/19003/25), seizure was imposed on property owned by right of private ownership by Bohuslaiev O.V., in particular:

- a share in the charter capital of LLC "FIRM 'ZHEKON'" in the amount of 51 %;
- an apartment with an area of 42.24 sq.m. at the address: Zaporizhzhia, Lenina Avenue, bldg. 129, apt. 37 (property registration number: 18402097);
- a garage with an area of 38.2 sq.m. at the address: Zaporizhzhia, servicing cooperative "Dniprohes", garage 49 (property registration number: 27062653);
- an apartment with an area of 88.9 sq.m. at the address: Autonomous Republic of Crimea, Yalta, Karla Marksa Street, bldg. 18a, apt. 29 (immovable property registration number: 200428101119).

From the said ruling it appears that the seizure on property was imposed by prohibiting its alienation and disposition with the aim of ensuring possible confiscation of property as a type of punishment, as well as preserving physical evidence.

Besides this, the investigating judge made a decision to transfer the seized property to the National Agency of Ukraine for Finding, Tracing and Management of Assets Derived from Corruption and Other Crimes for taking measures to manage them in the order and under conditions defined by Articles 19, 21, 21-1 of the Law of Ukraine "On the National Agency of Ukraine for Finding, Tracing and Management of Assets Derived from Corruption and Other Crimes".

From the materials available in the case, it was established that the pre-trial investigation in criminal proceeding No. 22017000000000272 dated 06.07.2017 is conducted by the Main Investigation Department of the Security Service of Ukraine on suspicion of Bohuslaiev V.O. of committing criminal offenses provided for by Part 5 of Article 191, Part 3 of Article 209 of the CC of Ukraine, Bohuslaiev O.V. of committing a criminal offense provided for by Part 3 of Article 209 of the CC of Ukraine, as well as on grounds of criminal offenses provided for by Part 1 of Article 14, Article 113, Part 2 of Article 209, Part 3 of Article 212, Part 1 of Article 111, Part 3 of Article 15, Part 4 of Article 190, Part 4 of Article 190, Part 4 of Article 358, Part 3 of Article 15, Part 4 of Article 190, Part 2 of Article 364, Part 1 of Article 15, Article 113, Part 1 of Article 333, Part 2 of Article 233, Part 1 of Article 111, Part 2 of Article 111, Part 4 of Article 111-1, Part 4 of Article 111-1, Part 4 of Article 111-1, Part 2 of Article 28, Part 4 of Article 111-1, Part 2 of Article 28, Part 1 of Article 111-2, Part 1 of Article 114-1, Part 2 of Article 28, Part 1 of Article 258-3, Part 1 of Article 333, Part 1 of Article 333, Part 1 of Article 333, Part 1 of Article 111-2, Part 2 of Article 28, Article 219 of the CC of Ukraine.

Article 4 of the Law of Ukraine "On the High Anti-Corruption Court" established that the High Anti-Corruption Court administers justice as a court of first and appellate instances in criminal proceedings regarding crimes assigned to its jurisdiction by procedural law, as well as by exercising judicial control over compliance with the rights, freedoms and interests of persons in such criminal proceedings in cases and order defined by procedural law.

In connection with this, when examining applications, complaints and motions submitted within criminal proceedings, the investigating judge must primarily examine the question of jurisdiction of such proceeding to the High Anti-Corruption Court, and consequently clarify whether it has powers to examine them.

In view of the above, the investigating judge considers it necessary first of all to clarify whether criminal proceeding No. 22017000000000272 dated 06.07.2017 is under the jurisdiction of the High Anti-Corruption Court and whether it is endowed with powers to examine the advocate's motion to cancel property seizure.

Pursuant to Part 1 of Article 33-1 of the CPC of Ukraine, criminal proceedings regarding corruption criminal offenses provided for in the note to Article 45 of the CC of Ukraine, Articles 206-2, 209, 211, 366-2, 366-3 of the CC of Ukraine are under the jurisdiction of the High Anti-Corruption Court, if at least one of the conditions provided for by clauses 1-3 of part five of Article 216 of the CPC of Ukraine is present.

According to clauses 1-3 of part 5 of Article 216 of the CPC of Ukraine, conditions of jurisdiction of criminal offenses defined in Article 33-1 of the CPC of Ukraine to the High Anti-Corruption Court are determined as: 1) correspondence to the subject of crime set out in

Вищий антикорупційний суд
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cl. 1 of part 5 of Art. 216 of the CPC of Ukraine; 2) the size of the object of the criminal offense provided for by Articles 354 (regarding legal entities of public law), 368, 369, 369-2 of the CC of Ukraine, exceeds by five hundred or more times the size of the subsistence minimum for able-bodied persons established by law at the time of committing the offense, as well as the object of offense or size of damage caused in criminal offenses provided for by Articles 191, 206-2, 209, 210, 211, 213, 219, 222, 222-1, 229, 231, 232, 232-1, 232-2, 233, 366-2, 366-3 of the CC of Ukraine, exceeds by two thousand or more times the size of the subsistence minimum for able-bodied persons established by law at the time of committing the criminal offense (if the offense was committed by an official of state authorities or a business entity in whose charter capital the share of state or communal ownership exceeds 50 percent), or 3) the criminal offense provided for by Article 369, part one of Article 369-2 of the CC of Ukraine, was committed regarding an official defined in part four of Article 18 of the CC of Ukraine or in clause 1 of this part.

Herewith, according to part 2 of Article 33-1 of the CPC of Ukraine, investigating judges of the High Anti-Corruption Court exercise judicial control over compliance with the rights, freedoms and interests of persons in criminal proceedings regarding criminal offenses assigned to the jurisdiction of the High Anti-Corruption Court pursuant to part one of this Article.

From the content of written notices of suspicion dated 28.04.2025 and 25.04.2025 it was established that Bohuslaiev V.O. is incriminated with misappropriation of property of JSC "Motor Sich" on an especially large scale (Part 5 of Article 191 of the CC of Ukraine) with subsequent legalization of proceeds obtained from the illegal sale of these shares to PRC citizens by prior conspiracy with his son Bohuslaiev O.V. (Part 3 of Article 209 of the CC of Ukraine).

Thus, according to the version of the prosecution, Bohuslaiev V.O., acting in the period of time from 17.06.1994 to 01.09.2014 through legal entities controlled by him in Ukraine (the owners of which were controlled non-resident companies), formed a controlling block of registered ordinary shares of JSC "Motor Sich" in the quantity of 1,038,996 shares, which constitutes 50% of the total quantity of issued shares, namely: "Business House Helena AG" - 359,727 (17.3113 %), LLC "Motor-Intercoms" - 201,565 (9.69 %), PrJSC "TD 'Olena'" - 193,220 (9.2984 %), "Granum Corporation" - 192,665 (9.2717 %), "Enfields Trade & Capital Corp." - 64,733 (3.1152 %), "Waldo Trade Ltd." - 27,086 (1.3035 %).

The process of denationalization of SE "Motor Sich", its transformation into a private company and the subsequent redemption of shares by private individuals took place in 1993-1995. Already from 1994 to 2015, Bohuslaiev V.O. unlawfully used the results of corporatization of SE "Motor Sich", exercising actual control over its activities, concentrating shares of the created JSC "Motor Sich" in his favor, as well as in favor of a number of physical and legal entities controlled by him and his son Bohuslaiev O.V.

After which, Bohuslaiev V.O. and his son Bohuslaiev O.V., by prior conspiracy, carried out unlawful concealment of the sources of origin of 650,000,000 US dollars, disguised as documentary appearance of the lawful sale of shares of JSC "Motor Sich", which Bohuslaiev V.O. had previously unlawfully and illegally seized, which contributed to their legalization, which at the exchange rate of the National Bank of Ukraine as of 02.08.2016 constituted 16,135,080,000 hryvnias, that is, an especially large scale.

As already noted, crimes provided for by Articles 191, 209 of the CC of Ukraine belong to the subject-matter jurisdiction of the High Anti-Corruption Court in case at least one of the conditions provided for by clauses 1-3 of part 5 of Article 216 of the CPC of Ukraine is present.

From the materials of the case it appears that Bohuslaiev V.O. in the period from May 2006 to August 2019 was a People's Deputy of Ukraine, and criminal activity according to the investigation version lasted from 1993 to 2016, that is, it encompassed, in particular, also the time of his staying in the status of People's Deputy of Ukraine.

Вищий антикорупційний суд
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Consequently, pursuant to paragraph 1 of clause 1 of part 5 of Article 216 of the CPC of Ukraine, during the specified period of time Bohuslaiev V.O. had the legal status of a subject of criminal offense, with the presence of which part 1 of Article 33-1 of the CPC of Ukraine links assigning the criminal proceeding to the subject-matter jurisdiction of the High Anti-Corruption Court.

At the same time, the subject-matter jurisdiction of the High Anti-Corruption Court is determined taking into account the provisions of clause 20-2 of Section XI "Transitional Provisions" of the CPC of Ukraine as worded by the Law of Ukraine No. 100-IX dated 18.09.2019, which came into force on 22.09.2019.

From the said date, jurisdiction of the High Anti-Corruption Court, provided for by the CPC of Ukraine as a court of first instance, court of appellate instance and investigating judges:

extends to criminal proceedings, information under which regarding a criminal offense is entered into the Unified Register of Pre-trial Investigations:

(1) from the date of entry into force of the Law of Ukraine "On Amendments to Certain Legislative Acts of Ukraine Concerning the Commencement of Operation of the High Anti-Corruption Court", that is, from 22.09.2019;

(2) prior to the date of entry into force of the Law of Ukraine "On Amendments to Certain Legislative Acts of Ukraine Concerning the Commencement of Operation of the High Anti-Corruption Court", that is, prior to 22.09.2019, if the pre-trial investigation is conducted or was conducted by the National Anti-Corruption Bureau of Ukraine and procedural supervision was carried out by prosecutors of the Specialized Anti-Corruption Prosecutor's Office.

Thus, from the extract from the Unified Register of Pre-trial Investigations it appears that criminal proceeding No. 22017000000000272 was commenced on 06.07.2017, that is, prior to the date of entry into force of the Law of Ukraine "On Amendments to Certain Legislative Acts of Ukraine Concerning the Commencement of Operation of the High Anti-Corruption Court", on the fact of possible commission of a criminal offense provided for by Part 1 of Article 14, Article 113 of the CC of Ukraine, with the following brief summary of circumstances: "In the period from 2016 to the present time, unidentified individuals from among the owners and officials of enterprises and company 'Motor Sich' (EDRPOU code 14307794), acting by prior conspiracy among themselves, with the aim of weakening the state through destroying the said enterprise as a facility of important national economic and defense significance, entered into a series of purchase and sale transactions for the controlling stake of the Factory's shares in favor of foreign companies Business House Helena AG (Panama), Enfields Trade & Capital Corp. (Panama), Waldo Trade Ltd. (British Virgin Islands), Granum Corporation (Panama), Skyrizon Aircraft Holdings Limited (British Virgin Islands), Likatron Enterprises Limited (Cyprus) and Ventalina Management Ltd (Nevis), which have no intention of conducting business activities with the said companies, but plan liquidation and removal, including the production facilities of Ukraine's only plant for manufacturing and modernizing turbojet engines for aircraft outside Ukraine".

From the resolution of Acting Prosecutor General Khomenko O.M. dated 30.09.2025 on resolving a jurisdictional dispute in criminal proceeding No. 22017000000000272 dated 06.07.2017, it appears that the pre-trial investigation commenced on 06.07.2017 on grounds of a crime provided for by Article 113 of the CC of Ukraine, was conducted by investigators of security agencies and was in the proceedings of the Main Investigation Department of the Security Service of Ukraine.

During the investigation by security agencies, a number of criminal offenses were detected, committed both by officials of JSC "Motor Sich" and other persons, and the relevant prosecutors took decisions to consolidate from twenty-seven criminal proceedings, commenced under the relevant parts of Articles 111, 111-2, 113, 114, 190, 191, 209, 212, 233, 258-3, 219, 333, 358, 364 of the CC of Ukraine.

In particular, on 04.08.2017 information was entered into the Unified Register of Pre-trial Investigations under Part 3 of Article 212 of the CC of Ukraine on the fact that officials of JSC "Motor Sich"

Вищий антикорупційний суд
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(EDRPOU code 14307794) intentionally, by prior conspiracy with unidentified persons, in violation of tax legislation norms, by understating the value of privatized property, evade payment of taxes, which leads to non-receipt of funds by the State Budget of Ukraine on an especially large scale".

Also, on 04.08.2017 information was entered under Part 2 of Article 209 of the CC of Ukraine on the fact that officials of JSC "Motor Sich" (EDRPOU code 14307794) intentionally, by prior conspiracy with unidentified persons, acquired property obtained as a result of committing a socially dangerous wrongful act that preceded the legalization of proceeds, during privatization of part of the property of SE "Motor Sich" through violation of established norms of the Law of Ukraine "On Privatization of Property of State Enterprises" dated 04.03.1992.

On 29.12.2022 information was entered under Part 3 of Article 209 of the CC of Ukraine on the fact that Bohuslaiev V.O., by prior conspiracy with Bohuslaiev O.V., Kunaiev Yu.V., Kononenko P.I., and with his son - Kononenko A.P. in the period of time from 2014 to 2022 acquire, possess, use and dispose of property regarding which factual circumstances indicate its obtaining through criminal means (in particular financing and aiding the activities of a terrorist organization) through provision to legal entities whose property is indirectly under their joint control (as well as legal and physical entities acting on behalf or on instructions of the said persons), including by making transactions with such property, or changing the form (transformation) of such property.

Under the specified episode, notice of suspicion was served on Bohuslaiev V.O. and Bohuslaiev O.V.

On 20.05.2024 information was entered under Part 5 of Article 191 of the CC of Ukraine on the fact that officials of JSC "Motor Sich", acting as a group of persons by prior conspiracy with other persons who exercised active control over the company's activities, Bohuslaiev V.O., Bohuslaiev O.V., by abusing official position committed in their interests misappropriation of the enterprise's property, thereby causing it damage on an especially large scale.

Under the specified fact, notice of suspicion was served on Bohuslaiev V.O.

By the abovementioned resolution of Acting Prosecutor General Khomenko O.M. dated 30.09.2025 in criminal proceeding No. 22017000000000272 dated 06.07.2017, investigative jurisdiction over criminal offenses was assigned to investigators of security agencies - the Main Investigation Department of the Security Service of Ukraine.

Herewith, as appears from the materials attached to the motion, the criminal offenses provided for by Part 5 of Article 191 of the CC of Ukraine and Part 3 of Article 209 of the CC of Ukraine, in the commission of which Bohuslaiev V.O. and his son Bohuslaiev O.V. are suspected, were detected precisely during the investigation by security agencies of a series of offenses in criminal proceeding No. 22017000000000272, information regarding which was entered into the Unified Register of Pre-trial Investigations subsequently, while the factual circumstances of the criminal offenses set forth in the written notices of suspicion against Bohuslaiev V.O. and Bohuslaiev O.V. testify to the fact, and the investigating judge concludes, that by their content they are derived from information that was entered into the URPI on 06.07.2017 under Part 1 of Article 14, Article 113 of the CC of Ukraine and on 04.08.2017 under Part 2 of Article 209 of the CC of Ukraine, and also constitute their further development and detailing.

Thus, in the course of the pre-trial investigation, the pre-trial investigation authority carried out clarification of the circle of involved persons taking into account new evidence and established factual circumstances, in connection with which elements of other offenses were established in the actions of the identified persons, besides those under which criminal proceeding No. 22017000000000272 was registered initially.

Consequently, the criminal offenses incriminated against Bohuslaiev V.O. and Bohuslaiev O.V. are the result of the development of the subject of pre-trial investigation

Вищий антикорупційний суд
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and are directly related to the factual circumstances detected within the specified criminal proceeding.

In view of the established circumstances, the investigating judge concludes that this criminal proceeding is not under the jurisdiction of the High Anti-Corruption Court, since information on the criminal offenses was entered into the Unified Register of Pre-trial Investigations prior to the entry into force of the Law of Ukraine "On Amendments to Certain Legislative Acts of Ukraine Concerning the Commencement of Operation of the High Anti-Corruption Court", while pre-trial investigation therein was not conducted and is not conducted by the National Anti-Corruption Bureau of Ukraine, and procedural supervision was not carried out by prosecutors of the Specialized Anti-Corruption Prosecutor's Office.

Consequently, taking into account that the specified motion is not subject to examination in the High Anti-Corruption Court, but its examination by the investigating judge has already commenced, the proper procedural decision in this case is closure of proceedings on the advocate's motion.

Based on the foregoing, guided by Articles 131, 132, 98, 170-174, 372, 376 of the CPC of Ukraine, the investigating judge

DECIDED:

The proceedings on the motion of advocate Miftakhutdinov V.S. to cancel property seizure, submitted in the interest of Bohuslaiev O.V. within criminal proceeding No. 22017000000000272 dated 06.07.2017 - be closed.

The ruling shall enter into legal force from the moment of its announcement and is not subject to appeal.

Investigating Judge /Signature/ **O.V. Fedorov**



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Ruling (sentence) entered into legal force: 08.05.2026
Court session secretary: /Signature/ A. Homeniuk, 19.05.2026
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Вищий антикорупційний суд
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Court session secretary of the second department
of court process support department of the apparatus of the
High Anti-Corruption Court
/Signature/ Anastasiia HOMENIUK

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